

CONFIDENTIALITY AND DATA PROTECTION AGREEMENT

made in Viškovo on _____ 20____ between:

1. INORBIT d.o.o. (full name: INORBIT društvo s ograničenom odgovornošću za usluge), with its registered seat at Benčani 15A, Saršoni, 51216 Viškovo, Croatia, entered in the court register of the Commercial Court in Rijeka under registration number (MBS) 081116183, personal identification number (OIB) 38846238650, represented by its director Nevio Vesić (the **Company**),

2. Nevio Vesić, Benčani 15A, Saršoni, 51216 Viškovo, Croatia, OIB 21048306137, in his own name (the **Director**; the Company and the Director together the **Disclosing Parties**),

and

3. _____ (company name / name), with its registered seat at _____, OIB _____, represented by _____ (the **Recipient**).

The Disclosing Parties and the Recipient are together the **Parties** and each a **Party**.

Recitals

The Recipient provides or will provide bookkeeping, accounting, tax, payroll and related advisory services to the Company (the **Services**). For the Services the Disclosing Parties make available to the Recipient the Company's business and financial records and, because the Director is the Company's sole member and director and his personal finances cannot be separated from a full view of the Company's affairs, the Director's personal financial records too, including records of his personal bank accounts and transactions. This Agreement governs the confidentiality of those records and the protection of personal data in their processing.

Article 1. Confidential Information

1.1. Confidential Information means all data, information and documents, in any form and on any medium, that the Disclosing Parties or persons acting on their behalf disclose to the Recipient in connection with the Services, before or after this Agreement is signed, and in particular:

- a) bank statements, transactions, balances and account details of the Company;
- b) bank statements, transactions, balances and account details of the Director's personal accounts, and other information on the Director's personal income, assets, expenses and liabilities;
- c) incoming and outgoing invoices, contracts, quotations, orders and the related correspondence;
- d) information on clients, suppliers, prices, revenue, margins, salaries and fees;
- e) business plans, projections, analyses and internal notes, including the notes the Disclosing Parties attach to individual transactions;
- f) information on the Company's information systems, credentials, user accounts and the documentation of any system the Recipient is given access to;

g) any summary, extract, copy or derivative of any of the above made by the Recipient.

1.2. Information is Confidential Information whether or not it is marked as such, if a reasonable person in the Recipient's position would understand it to be confidential from its nature and the circumstances of its disclosure.

1.3. Information is not Confidential Information if the Recipient proves that it:

- a) was or became publicly available without breach of this Agreement;
- b) was lawfully in the Recipient's possession before disclosure, free of any duty of confidence;
- c) was lawfully received from a third party not bound by a duty of confidence;
- d) was developed by the Recipient independently, without use of Confidential Information.

The Director's personal data does not cease to be protected by this Agreement on the ground in point a).

Article 2. The Recipient's obligations

2.1. The Recipient shall use Confidential Information solely to perform the Services and for no other purpose.

2.2. The Recipient shall not disclose, make available or transfer Confidential Information to any third party, except:

- a) to its employees and external contractors who need it to perform the Services, who have been informed of its confidentiality and are bound by a duty of confidence at least as strict as this one; the Recipient is liable for their conduct as for its own;
- b) to public authorities (the Tax Administration, FINA, the pension and health insurance institutes, courts and other bodies) to the extent the Services require it by law or a binding decision of a competent authority orders it; of any request that is not a routine statutory filing the Recipient shall, where permitted, notify the Disclosing Parties without delay.

2.3. The Recipient shall protect Confidential Information with at least the care it applies to its own information of like importance and no less than the care of a diligent professional, and shall apply appropriate technical and organisational measures, in particular:

- a) treat credentials received from the Disclosing Parties (user accounts, passwords, links) as personal, not share them, and use multi-factor authentication where offered;
- b) store Confidential Information only on systems under its control, protected from unauthorised access, and not transfer it to employees' private devices or accounts;
- c) make copies only to the extent the Services require;
- d) notify the Disclosing Parties of any unauthorised access to, loss or disclosure of Confidential Information without delay and at the latest within 48 hours of becoming aware, describing the event and the measures taken.

2.4. The Recipient shall not use Confidential Information, and in particular the Director's personal financial data, for profiling, marketing, offering other services, statistical comparison with other clients or any purpose outside the Services, and shall not pool it with other clients' data.

Article 3. Personal data

3.1. The Parties acknowledge that Regulation (EU) 2016/679 (the General Data Protection Regulation, the **GDPR**) and the Croatian Act on the Implementation of the General Data Protection Regulation apply to the processing of personal data.

3.2. Where the Recipient processes personal data on the Company's behalf (in particular data of the Director and of the Company's employees, clients and suppliers), the Recipient is the **processor** and the Company the **controller**. Where the law obliges the Recipient to process personal data in its own name (for example in filing prescribed forms and records), the Recipient is an independent controller for that processing and is responsible for its lawfulness.

3.3. As processor the Recipient shall:

- a) process personal data only on the Company's documented instructions, including this Agreement, unless Union or Croatian law requires otherwise, in which case it shall inform the Company beforehand where permitted;
- b) ensure that persons authorised to process the data are bound by confidentiality;
- c) apply the measures of Article 32 GDPR;
- d) not engage another processor without the Company's prior written consent; impose the same obligations on any sub-processor it engages and remain liable for it;
- e) assist the Company in responding to data subjects' requests and in meeting its obligations under Articles 32 to 36 GDPR;
- f) notify the Company of a personal data breach without undue delay and at the latest within 48 hours of becoming aware;
- g) at the end of the Services delete or return the personal data at the Company's choice and delete existing copies, unless the law requires their retention;
- h) make available to the Company the information needed to demonstrate compliance and allow audits on reasonable prior notice.

3.4. The Parties may enter into a separate data processing agreement; until then, and in whatever it does not govern, this Article applies.

3.5. The Director makes his personal financial data available solely for the Services to the Company and for a complete view of its affairs. The Recipient processes it as processor within the meaning of point 3.2, separately from the Company's books insofar as it is not part of them, and shall not include it in the Company's records, filings or reports unless the law requires it or the Director expressly asks for it.

Article 4. Return and destruction

4.1. On the Disclosing Parties' written request, and in any event at the end of the Services, the Recipient shall within 30 days return or permanently destroy all Confidential Information and copies in its possession, including those held by persons under point 2.2.a), and confirm so in writing on request.

4.2. Excepted are documents and records the Recipient must retain by law or for the establishment or defence of legal claims, and backup copies that are routinely overwritten; they remain Confidential

Information and subject to this Agreement for as long as they exist.

Article 5. Ownership and no warranty

5.1. Confidential Information remains the property of the Party that disclosed it. This Agreement grants the Recipient no right, licence or authority in Confidential Information other than the right of use under point 2.1.

5.2. The Disclosing Parties give no warranty as to the accuracy or completeness of Confidential Information, except as agreed in the contract for the Services, and undertake no obligation under this Agreement to disclose anything.

Article 6. Term

6.1. This Agreement enters into force on signature and applies for as long as the Services are provided.

6.2. The confidentiality obligations continue for **five (5) years** after the Services end. For personal data, and for information that is a trade secret within the meaning of the Croatian Act on the Protection of Undisclosed Information with Market Value, the obligations continue for as long as the information has that character, without time limit.

Article 7. Liability

7.1. For a breach of this Agreement the Recipient is liable to the Disclosing Parties for all resulting damage under the general rules of the law of obligations.

7.2. The Disclosing Parties may seek an injunction against a continuing breach (interim measure) without having to prove irreparable harm, the Parties agreeing that monetary compensation alone would not be adequate protection.

7.3. For each individual breach of an obligation under Articles 2, 3 or 4 of this Agreement the Recipient shall pay the Disclosing Parties a contractual penalty of EUR 10,000.00 (ten thousand euro), whether or not damage has occurred and irrespective of its amount (Article 355 of the Croatian Obligations Act). If the damage exceeds the contractual penalty, the Disclosing Parties are entitled to the difference up to full compensation. No penalty is due where the breach arose from a cause for which the Recipient is not responsible.

Article 8. Final provisions

8.1. This Agreement is governed by the law of the Republic of Croatia. The court with subject-matter jurisdiction in Rijeka has jurisdiction over disputes.

8.2. This Agreement is made in Croatian and English. In case of discrepancy the Croatian version prevails.

8.3. This Agreement is the Parties' entire agreement on the confidentiality of Confidential Information and does not alter the contract for the Services in matters other than confidentiality. Where that contract provides stricter protection, the stricter provision applies.

8.4. Amendments to this Agreement are valid only in writing.

8.5. If any provision of this Agreement proves void or unenforceable, the remaining provisions remain in force and the Parties shall replace the void provision with a valid one closest to its purpose.

8.6. This Agreement is made in three (3) identical counterparts, one for each Party. An electronic signature and the exchange of signed counterparts as scans have the effect of a handwritten signature.

For the Company	The Director, in his own name	For the Recipient
INORBIT d.o.o.	Nevio Vesić	_____
_____	_____	_____
Nevio Vesić, director		_____ (name and title)
Place and date: _____	Place and date: _____	Place and date: _____